

Motion, how
made.

The motion must be supported by such evidence as shall satisfy the Court—

1. Of the Applicant's Title to Relief.
2. Of the propriety of permitting the amendment at the particular stage of the Cause under all the circumstances.
3. That the Order will be a furtherance of Justice.

The Court, upon pronouncing any Order for amendment under this rule, shall give such directions as to the future conduct of the Cause, in relation to answering such amendments, the evidence taken, or to be taken, and in all other respects, as the circumstances of the case may require.

The first two clauses of the above Order XII are in the words of the English Orders LXIV, LXV, of 1845.

English Order
LXVI.

The English Order LXVI of 1845 is in the words of the third Clause of the above 12th Order, except that, instead of the words "before filing a replication", it says, "before filing (*or undertaking to file*) a replication."

Compared with
English Orders.

The words "last of several answers" in the 66th English Order of 1845, which answers to the 3rd Clause of the above Order 12, have been held to mean, the last answer to be put in before replication, and not the last answer filed before the application to amend. That is, the Plaintiff may wait for all the answers, and then amend within four weeks, unless put upon terms by a motion to dismiss. (See *post* under head of "Speeding the Cause"). *Arnold vs. Arnold*, 1 Phillips, 805; *Dalton vs. Hayter*, 7 Beaven, 586; *Forman vs. Gray*, 9 Beaven, 200). The statement that the Plaintiff may wait for all the answers before amending, may be subject to this exception, that, if a Defendant is stated to be out of the jurisdiction, and all the others have answered, and more than a month has elapsed, an Order of course may be held irregular.—(*King of Spain vs. Hullett*, 3 Sim. 338).

It is advisable generally not to take the Order to amend until all the Defendants, who are likely to answer, have answered, for a subsequent answer may suggest a new amendment, and there cannot be a second Order of course to amend. The above 3rd clause of Order 12 says "*one*

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